

25LBCV01845 25LBCV01845

County: los-angeles

Division: Civil Law and Motion

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1. Background

Facts

This is a lemon

law case. On or about March 15, 2019, Plaintiffs Brett Roman and Evelyn Roman ("Plaintiffs") entered into a warranty contract with Defendant FCA US, LLC ("FCA") regarding a 2019 Jeep Grand Cherokee ("Vehicle") which was manufactured and/or distributed by FCA. (Compl., ¶ 7.) Defects and nonconformities to warranty manifested themselves, including engine defects, transmission defects, and electrical defects. (Id. at ¶ 12.) Plaintiffs allege that FCA knew prior to Plaintiffs' purchase of the Vehicle that the 2019 Jeep Grand Cherokee vehicles equipped with the 3.6L engine had defects. (Id. at ¶ 16.)

On June 25, 2025,

Plaintiffs filed a Complaint against Defendants FCA, Glenn E. Thomas Dodge Chrysler Jeep Ram, and Does 1 through 10 alleging (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement Concealment.

On April 28,

2026, Plaintiffs filed this Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure § 871.26 and Request for Monetary Sanctions ("Motion").

On July 17, 2026,

FCA filed an opposition.

No reply has been
filed.

2. Legal Standard

“Within 60 days after the filing of
the answer or other responsive pleading, all parties shall, without awaiting a
discovery request, provide to all other parties an initial disclosure and
documents pursuant to subdivisions (f), (g), and (h).” (Civ. Proc. Code, §
871.26, subd. (b).) “The defendant or manufacturer shall provide the following
documents to all other parties pursuant to the timelines prescribed in
subdivision (b): ... (6) Motor vehicle information reports, including build
documentation, component information, and delivery details. (7) Entire warranty
transaction history for the motor vehicle. (8) Listing of required field
actions applicable to the motor vehicle. (9) Published technical service
bulletins (“TSBs”)¹ for the same make, model, and year reasonably related to
the nonconformities pertaining to the motor vehicle. (10) Published information
service bulletins (“ISBs”) for the same make, model, and year reasonably
related to the nonconformities pertaining to the motor vehicle... (12) Warranty
policies and procedure manuals. (13) Service manuals reasonably related to the
nonconformities pertaining to the motor vehicle....” (Id. at § 871.26,
subd. (h).)

“Unless the party failing to comply
with this section shows good cause, notwithstanding any other law and in
addition to any other sanctions imposed pursuant to this chapter, a court shall
impose sanctions as follows:

(1) A

one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's
attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the
defense attorney respectively, paid within 15 business days for failure to
comply with the document production requirements as prescribed in subdivision
(b).

(2) A

one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's
attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the

defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)."

(Id. at § 871.26, subd. (j).)

3. Discussion

Plaintiffs move for an order compelling FCA to produce all documents required under section 871.26(h)(6)-(10), and (12)-(13) and an order imposing mandatory sanctions against FCA and its counsel for \$2,500.

Plaintiffs contend that FCA has failed to produce (1) the Warranty Policies and Procedure Manual (WPPM); (2) Pre-Delivery Inspection (PDI) records showing what defects FCA knew about the vehicle's condition at the time of sale; (3) the entire warranty transaction history with missing diagnostic trouble code (DTC) results and software version information; (4) field action and recall documentation; (5) applicable technical service bulletins (TSBs) and information service bulletins (ISBs); and (6) service manuals for systems the dealer diagnosed and repaired.

In opposition, FCA argues that FCA complied with its section 871.26 obligations by serving Initial Document Production on the statutory deadline of December 5, 2025. FCA argues that Plaintiff seeks an order compelling broad categories of documents beyond the statute's limited initial-disclosure framework. To the extent that Plaintiffs believe additional documents exists outside the scope of section 871.26, Plaintiffs may serve discovery requests.

Plaintiffs do not contend that the FCA failed to serve initial disclosure production in its entirety. (Rucker Decl., ¶ 10.) Plaintiffs merely contend that the FCA's production is incomplete. (Id. at ¶ 11.) FCA served Plaintiffs with Initial Production of Documents on December 5, 2025, consisting of over 1,000 pages of materials including repair records, warranty claim records, sales brochures, sales documents, vehicle information detail report, glove box documents, the Monroney label, Technical Service Bulletins (TSBs), and recalls applicable to the Vehicle. (Wang Decl., ¶ 8.) On April 13, 2026, FCA produced more documents in an abundance of caution and provided a written Initial Disclosure Pleading. (Id.

at ¶ 10.) Plaintiffs admit to having received the document production. (Rucker Decl., ¶ 10.) Thus, the Court finds that FCA complied with its initial disclosure obligations. To the extent Plaintiffs seek further or additional information, Plaintiffs should do so through other discovery methods, such as interrogatories or requests for production. Thus, the Motion is denied.

Since the Court finds FCA to have complied with section 871.26 by serving the required documents in their initial disclosures, the Court also denies Plaintiffs' request for sanctions.

4. Conclusion

Based on the foregoing, the Court DENIES Plaintiffs' Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure § 871.26 and Request for Monetary Sanctions.

Moving Plaintiffs are ordered to give notice.